

Submitted:

Received by Clerk:

Deadline:

Extension:

Fees:

Fulfilled:



Colorado Open Records Act Request Form

The first hour of research and retrieval is free and you will be charged thereafter at \$33.58/hr in 30 minute increments. You will be contacted before any paid time is incurred with an estimated cost and request a required deposit to continue the records request. Black and white 8.5 x 11 copies will be charged at \$0.25/page

Please read the Town of Paonia's Colorado Open Records Act Public Records Request Policy for more information on submission, response, procedure, and fees. Please make sure there is at least one current and legible way to contact you for any questions the Town Clerk may have to help in your request.

Name: Pete McCarthy Date: May 5, 2026 Phone: (415) 623-9773

Mailing Address (if applicable): Paonia, CO 81428

Email Address (if applicable): petefromsf@gmail.com Physical or PDF: PDF

This form is for requesting already existing records and does not apply to Criminal Justice Records which must be requested directly from the Paonia Police Department. To facilitate the search, please be as specific as possible in describing the requested document(s).

Number of Copies	Document Name or Detailed Description
	March 2026 M365 unified audit log — COMPLETE.
1	The complete M365 unified audit log for the Town's tenant covering March 1-31, 2026. The C 26-12 file labeled "Mar2026" contained April 1-9, 2026 data only (RecordIds byte-identical to the April file).
	Produce as paginated programmatic export (Search-UnifiedAuditLog - ResultSize 5000 with continuation), CSV. See attached narrative.
	Complete paginated export beyond the 50,000-row UI cap.
1	The complete M365 unified audit log for all retention dates from Nov 1, 2025 through May 5, 2026, beyond the 50,000-row Microsoft Purview UI cap that limited every monthly file in the C 26-12 production. CSV, paginated programmatic export. See attached narrative.
	AuditData column -- unredacted production OR per-item redaction log.
	For all C 26-12 rows and all rows produced under items 1-2 above:
1	the AuditData column unredacted to the maximum extent permissible. If exemption is continued over any AuditData subfield, an itemized redaction log per C.R.S. SS 24-72-204(4) identifying for each redaction: (a) the RecordId, (b) the AuditData subfield(s) redacted,
	(c) the specific statutory subsection asserted, and (d) the factual basis on which that subsection applies. See attached narrative.

C.R.S. 24-72-201 to 24-72-309

Note: The Town Clerk will deem the request received on the next business day after submittal.

CORA Records Request Form Rev: March 12, 2025

SUPPLEMENTAL CORA REQUEST -- ATTACHED NARRATIVE

Re: Records responsive to CORA C 26-12 (production dated April 22, 2026)

This request is filed to obtain records that were responsive to CORA C 26-12 but were not produced or were produced in a form that does not satisfy the original request or the Colorado Open Records Act.

ITEM 1 -- March 2026 audit log

The C 26-12 production included a file labeled "Redacted_TownOfPaonia_Audit_Log_Mar2026.xlsx". The first 50,000 RecordIds in that file are byte-identical to the first 50,000 RecordIds in the April 2026 file. The "Mar2026" file contains April 1-9, 2026 data. It does not contain any March 2026 records. The original C 26-12 request expressly sought "the complete Microsoft 365 Unified Audit Log export ... for all available dates retained by the system." March 2026 falls within the Town's 180-day retention window. The records exist and were not produced. The export should be generated via Search-UnifiedAuditLog -ResultSize 5000 with continuation pagination, or via the Microsoft Management Activity API; neither is subject to the 50,000-row UI cap.

ITEM 2 -- Beyond the 50,000-row UI cap for all months

Each of the six monthly XLSX files in the C 26-12 production contains exactly 50,000 rows. 50,000 is the legacy Microsoft Purview UI export ceiling; it is not a record-count limit imposed by Colorado law or by the M365 platform. A single Vetter account generated more than 25,000 events in November 2025. Full months across the Town's 70+ active accounts run substantially higher. The 50,000-row files are partial productions, not complete months. I request the records that exist beyond the 50,000-row cap for each month in the C 26-12 retention window, produced via paginated programmatic export.

ITEM 3 -- AuditData: unredacted, or itemized redaction log

The C 26-12 production redacted the entire AuditData column on every row produced -- approximately 250,000 rows -- under a single broad citation to C.R.S. SS 24-72-204(2)(a)(VIII), the critical-infrastructure-information exemption.

AuditData is a structured JSON field. It contains discrete subfields including Subject (email subject), Recipients and RecipientUPN, ClientIPAddress, Operation, MailboxOwnerUPN, AffectedItems (delete operations), Parameters (mailbox rules), ItemFolderPathName, and many others. Per-field redaction within AuditData is a standard operation in Purview and in any post-export tooling. A column-wide blackout treats every field in every event as if each independently met SS 204(2)(a)(VIII) and supplies no analysis as to why.

C.R.S. SS 24-72-204(4) requires the records custodian, on request, to produce a written statement of the specific grounds for any denial or partial denial by reference to the records or portion withheld and the specific statutory authority. SS 24-72-204(2) further requires the asserted exemption to be specifically supported, not invoked categorically. Where only certain subfields plausibly implicate "specific details" of "any security arrangements," the proper response is per-field redaction supported by per-field justification -- not a blanket column blackout.

I therefore request, in the alternative:

(A) Production of the AuditData column UNREDACTED to the maximum extent permissible; or

(B) If the Town continues to assert exemption over any specific AuditData subfield, an ITEMIZED REDACTION LOG identifying for each redaction:

1. the RecordId of the row,
2. the AuditData subfield(s) redacted within that row,
3. the specific statutory subsection asserted as the basis,
4. the factual basis on which that subsection applies to those subfields in that row -- sufficient to allow a reviewing party to evaluate whether the asserted exemption applies as a matter of law.

This is what SS 204(4) requires once an asserted exemption is challenged. A column-wide redaction with one citation does not satisfy the statute; an itemized log does.

FORMAT AND DELIVERY

CSV is the preferred export format. The redaction log may be produced in CSV, XLSX, or PDF form. Electronic delivery to the email above is preferred, with notice of any deposit required before staff time is incurred.

PRESERVATION NOTICE

I previously placed the Town on preservation notice covering this category of records by letter to the Custodian dated April 23, 2026, copied to the Town Attorney, Town Administrator, and Mayor. That preservation notice remains in effect.

Respectfully,

Pete McCarthy
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